

TENTATIVE RULINGS

Date: August 20, 2026

#	Case Name	Tentative
1.	30-2026-01563477 Porras vs. American Honda Motor Co. Inc	1. Motion to Strike-Anti SLAPP Based on applicable law, and as set forth herein, Defendant American Honda Motor Co., Inc.’s (“Defendant”) Special Motion to Strike Pursuant to CCP § 425.16 is GRANTED. “Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit. If the plaintiff cannot make this showing, the court will strike the claim.” (<i>Bonni v. St. Joseph Health System</i> (2021) 11 Cal.5th 995, 1009 (<i>Bonni</i>) (internal citations omitted).) In determining whether the plaintiff’s claims arise from protected activity, “courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (<i>Ibid.</i> (internal citations omitted).) Further, a special motion to strike under the anti-SLAPP statute need not challenge an entire cause of action as pleaded in the complaint; rather, courts should analyze each claim for relief--each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action--to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion. (<i>Musero v. Creative Artists Agency, LLC</i> (2021) 72 Cal.App.5th 802, 815 (citing <i>Bonni, supra</i>).) Here, Defendant moves to strike the following language from Plaintiff’s third cause of action for Violation of Business & Professions Code §17200: “Trying to coerce Plaintiff and other members of the public to sign confidentiality clauses.” (Compl. ¶ 44(5).) Defendant has submitted evidence that “With respect to individual owners and lessees of Honda vehicles, such as Plaintiff, Defendant AHM only bargains for confidentiality clauses in the course of negotiating agreements to settle and release claims, and those negotiations only take place when a lawsuit has already commenced or when AHM is aware of a customers’ dispute and believes that a lawsuit may be filed.” (Pacheco Decl. ¶ 7.) Plaintiff has not filed an opposition to the motion, and therefore is deemed to have conceded that this activity is what the allegation refers to. (<i>See, e.g., DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 (“By failing to argue the contrary, plaintiffs concede this issue”).) The anti-SLAPP statute identifies four categories of protected activity. Of relevance here, section 435.16(e)(2) includes “any written or oral statement or writing made in connection with an issue under consideration or review by a . . . judicial body.” (CCP § 425.16(e)(2).) Courts have construed that subsection to include claims arising out of settlement negotiations preceding

		the filing of a lawsuit as protected activity for anti-SLAPP purposes. (<i>Bonni</i> (2021) 11 Cal.5th at 1024.) As Defendant has met his burden and demonstrated that the Complaint arises from protected activity, the burden shifts to Plaintiff to demonstrate that his or her claims are legally sufficient and factually substantiated. (<i>Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism</i> (2018) 23 Cal.App.5th 28, 49.) “To meet this burden, a plaintiff cannot rely on its own pleading, even if verified...but must present admissible evidence.” (<i>Ibid.</i>) Plaintiff did not file an opposition to the motion and therefore has presented no evidence to support the allegations of her complaint. Accordingly, the motion is granted. Defendant to give notice.
2.	30-2025-01464449 Taylor vs. The City of Fullerton	1. Motion for Continuance of Trial Based on the Joint Stipulation to Continue Trial Date and Related Discovery and Motion-Cut Off Dates, the Jury Trial scheduled for 11/09/2026 is CONTINUED to 05/10/2027 at 09:00 AM in Department C34. All related discovery, motion deadlines and trial related dates will be based on the new trial date. Based on the Joint Stipulation to Continue Trial Date and Related Discovery and Motion-Cut Off Dates, the Motion for Continuance of Trial set for 08/20/2026 at 1:30PM in Department C34 is VACATED. Clerk to give notice.
3.	30-2024-01443133 ESC-TOY LTD. vs. Maschoff Brennan Gilmore & Israelsen	1. Case Management Conference 2. Motion to Compel Production 3. Motion to Compel Further Responses to Special Interrogatories 4. Motion to Compel Production No tentative rulings. Counsel should appear – remotely or in person- and be prepared to discuss: (1) appointment of a discovery referee and (2) the status of any request for stay pending the Federal case.
4.	30-2024-01402013 Lara vs. Volkswagen Group of America, Inc	1. Motion to Compel Deposition (Oral or Written) Defendant Volkswagen Group of America, Inc. (“Defendant” or “VWGoA”) moves the Court for an Order compelling Plaintiff Norma Lara to appear for a deposition by remote electronic means and produce documents within fifteen (15) days, or a date that the Court otherwise deems appropriate. Pursuant to CCP§2025.450 (a), “if, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for